

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHASEN PAUL DAVID GONZALES,

Petitioner

VS.

CHIPONGOLO MULENGA,

Respondent

) Case Number: FPT-24-378337

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Chasen Paul David Gonzales (Father) and Chipongolo Mulenga (Mother) have one minor child together, Ethan (DOB 7/22/2023, age 2). Father lives in San Francisco; Mother lives in Walnut Creek. On 12/4/2024, a 4-year Domestic Violence Restraining Order was issued against Father, protecting Mother.
- 2) On 10/2/2025, the Court found Father met his burden of overcoming the Family Code section 3044 presumption against joint custody but found it was in Ethan's best interest for Mother to retain sole legal and physical custody, with parenting time for Father from Thursday to Friday during Week A and Thursday to Sunday during Week B (29% timeshare). The Court expressed concern about the parties' poor communication and ordered them to continue participating in coparenting counseling.
- 3) On 1/6/2026, Father filed a request for joint legal custody, a two-phase transition into a 2-2-5-5 parenting time schedule, a holiday schedule, and a review hearing in 6 months.

- 4) Mother filed a response setting forth a proposed holiday schedule and requesting a right of first refusal and modification of the custody exchange location. Father filed a reply disputing Mother's assertions.
- 5) On 4/21/2026, the Court maintained the custody and parenting time order, set a holiday schedule, granted Father's request to travel with Ethan out of state from 7/1/2026 to 7/7/2026, and set a review hearing for 7/21/2026.
- 6) Mother recently retained new counsel, who has requested a brief continuance of the 7/21/2026 hearing based on counsel's unavailability on that date and her need for time to prepare and engage in meet and confer efforts with Father's counsel. Father opposes this request, stating there are issues such as Ethan's school, parenting time, and access to medical records that he states require immediate attention. Mother has filed a supplemental declaration disputing Father's assertions regarding the urgency of this matter.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court continues the matter to **9/1/2026 at 9AM in Department 404**. All prior orders including the order for both parties to have the right to view all records regarding Ethan remain in full force and effect. Pending the 9/1/2026 hearing, the parties shall meet and confer regarding the issues raised in the parties' update declarations. The parties may file and serve brief update declarations no longer than 5 pages at least 10 days before the 9/1/2026 hearing only if there are significant updates since the filing of their last declarations.
- 3) The Court will prepare the Findings and Order After Hearing.